ROLE SECURITY (PVT) LTD
versus
TENDAI GRUWO
and
CBZ BANK LIMITED
and
THE SHERIFF OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 20 November 2026 & 24 March 2026

Costs - Self Actor

G Maseko, for the Applicant
T V Mututa, for the 1st Respondent
No appearance for the 2nd & 3rd Respondents

MAXWELL J:

On 20 December 2024 an order striking off the roll an urgent chamber application for stay of execution with costs was issued.

Applicant had filed the application for stay of execution and served it on the Respondents. First Respondent filed a notice of opposition prepared by Mudimu Law Chambers. On the date of the hearing first Respondent appeared as a self-actor. On 8 September 2025 first Respondent filed a notice of taxation. He attached a bill of costs of fees and disbursements due to Mudimu Law Chambers. The grand total reflected on the bill was RTGS $547 963.00 and USD $8050,00. On 8 September 2025, the first Respondent requested that the matter be placed before a Judge in Chambers for determination of whether he can recover disbursement for preparatory work done by counsel even though he appeared as a self actor on the day of the hearing. On 18 September 2025 Mudimu Law Chambers filed submissions on taxation on behalf of the first Respondent. Applicant objected to the bill of costs and filed submissions on 23 September 2025.

From the submission, the following appears

- The parties appeared before the taxing officer three times and the hearings were postponed at the instance of the first Respondent.

- Initially applicant disputed how a self-actor was claiming costs due to a legal practitioner. The Lawyers promised to come.
- Secondly first Respondent had a bereavement.
- Thirdly first Respondent could not produce any proof of payment to the Advocate despite insistence since the first appearance.

On the fourth appearance first Respondent and a legal practitioner from Mudimu Law Chambers tendered photocopied receipts. Applicant disputed the authenticity of the receipts and the fees of US$ 7 000,00 paid to the Advocate. A point was made that the fees were for up to the hearing day and the Advocate did not attend the hearing. Applicant outlined the objections to the bill as follows.

(1) A litigant who choose to appear in person cannot pass on the costs of legal work that was superfluous to the conduct of the hearing; and
(2) The claim constitutes an impermissible double taxation, as the instructing legal practitioners, Mudimu Law Chamber's fee encompasses the very same preparatory work now being charged by the advocate.
(3) The applicant challenges the authenticity of the receipts and invoices shown to them by the first Respondent as the same was not available the first three meetings parties had.
(4) The bill is misleading from item 47-57 as the client was now a self-actor and no advocate appeared for him.
(5) The disbursement charge of engaging an advocate to the extent of getting an opinion worth 2 000 is unnecessary considering research had already been done by the said legal practitioners.
(6) The charges by the Advocate are exorbitant and not in the range other advocates normally charge.
(7) No proof shows that indeed the advocate drafted the said pleadings not even an instructing brief.

An examination of the record shows that Applicant is justified in objecting to the bill tendered by the first Respondent. The Urgent Chamber Application for Stay of Execution was filed on 12 December 2024. It is common cause that it was served on the first Respondent on 16 December 2024. A certificate of service confirms that position and first Respondent did not put that date into issue. It therefore follows that if there was any consultation with legal counsel, it ought to have been after service of the application. The bill

of costs includes costs that are not related to the Urgent Chamber Application for Stay of Execution, HCH 5667/24. The following issues are glaring.

1) The bill's opening date is 11 December 2024 on which date there is reference to "Perusing relevant document Notice of Appeal and Statutes"
On 11 December 2024, the application under HCH5667/24 had not yet been filed. If there was perusal of documents, it was not documents in HCH 5667/24. It is therefore improper for the costs related to 11 December 2024 to be included on the bill for HCH 5667/24.
The same is true for the costs related to 12 December 2024. It is on this date that there is reference to "Drafting brief to Advocate *T Sibanda* for legal opinion".

All the travelling and meetings held on 12 December 2024 were definitely not for HCH 5667/24. First Respondent had not yet been served with the application. Mudimu Law Chambers could not have instructed an advocate before service was effected on their client. If they did, it is unheard of and surprising. One would want to see the contents of the actual brief in the circumstances. Clearly the costs for this day are also not supposed to be on the bill for HCH 5667/24.

2) On 18 and 19 December 2024 there is reference to "receiving and downloading Answering Affidavit, " Receiving and downloading Respondent's Heads of Argument." There was no answering affidavit filed in HCH 5667/24. The first Respondent could not have received his heads of argument. Neither did the other respondents in the matter file heads of argument since they had not even responded to the application. Clearly the answering affidavit and heads of argument were for a matter other than HCH 5667/24 from the above, it is clear that Advocate *Sibanda* was involved in a matter which is not HCH 5667/24.
3) Though Mudimu Law Chambers prepared the Notice of Opposition, there was no formal assumption of agency or compliance with Rule 9 (1) of the High Court Rules of 2021. On the Integrated Electronic Case Management System (IECMS) there is provision for the input of the details of the parties and their legal practitioners. Under General Information, there is no legal practitioners indicated a representing the first Respondent. Mudimu Law Chambers never requested to be linked to case number HCH 5667/24 representing first Respondent.

The notice of taxation giving rise to this judgment was filed by the first Respondent as a self-actor.

4) The hearing of HCH 5667/24 was set down for 1000 hours on 20 December 2024. The matter was struck off the roll. Surprisingly heads of argument were uploaded on the same day at 15:24 hours. They were not signed by an advocate. The matter was

struck off the roll in the morning. The reason for uploading heads of argument in the afternoon can only be to try and increase the recoverable costs. Such conduct borders on fraud.

Mr Mututa appeared for the first Respondent and defended the bill as it is. He sought to justify the engagement of an advocate. He stated that "this litigation was in a series of other matters that came, representation was still being offered to first Respondent. Legal counsel was still being offered to first Respondent. The only reason he appeared without a legal practitioner of record was merely a logistical issue."

Even where there are series of other matters, each one is distinct and that distinction is through a reference number. Costs were ordered in relation to HCH 5667/24. The costs are not for the series of matters. The bill attached to the notice of taxation is erroneous. First Respondent must tender a bill of costs relating to HCH 5667/24.

The following order is appropriate.

First Respondent be and hereby ordered to prepare a bill of costs for HCH 5667/24 only.

The revised bill is to be referred to taxation in terms of the High Court Rules of 2021.

MAXWELL J:…….

Maseko Law Chambers, Applicant's Legal Practitioners
Mudimu Law Chambers, 1st Respondent's Legal Practitioners